

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 12/11/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02747
CASE NAME: JOHN KEYS VS. FRESCHI AIR SYSTEMS, LLC
*HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SETTLEMENT (CONTINUED FROM: 10.30.2025)
FILED BY:
TENTATIVE RULING:

Plaintiffs John Keys and Shantell Jordan move for final approval of their class action and PAGA settlement with defendant Freschi Air Systems LLC. The matter was first heard on October 30, 2025,

and was continued for supplementation of the record concerning notice to the class.

A. Background and Settlement Terms

The original complaint was filed by Mr. Keys on December 27, 2022, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including misclassification of non-exempt workers, failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. The currently operative complaint is a Second Amended Complaint filed on September 23, 2024, adding Ms. Jordan as a plaintiff.

The settlement would create a gross settlement fund of \$480,000. The class representative payment to each plaintiff would be \$7,500. Attorney's fees would be \$160,000 (one-third of the settlement). Litigation costs would not exceed \$35,000. The settlement administrator's costs would not exceed \$6,990. PAGA penalties would be \$50,000, resulting in a payment of \$37,500 to the LWDA and \$12,500 to plaintiffs. The net amount paid directly to the class members would be about \$225,510. The fund is non-reversionary. Based on the estimated class size of 213 (86 PAGA employees), the average net payment for each class member is approximately \$1,054.50.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and will be transmitted to the State Controller's Office Unclaimed Property fund.

Notice was mailed to the class members, as set forth in the supplemental submission. 202 notices were mailed, and 19 were returned as undeliverable. Follow-up resulted in 15 new addresses, which were mailed and only 4 were returned. No objections were received. No requests for exclusion were received.

The settlement contains release language covering "all claims against Released Parties under state federal, or local law, that were asserted or could have been asserted based on the facts, claims or theories raised in the Third Amended Complaint (to be filed) or any prior complaints; facts, claims or theories expressly raised in Plaintiff's amended notice to the LWDA (to be filed)[.]" Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

The release of claims in two at one point unfiled documents—the Third Amended Complaint and the amended LWDA notice--potentially raised two issues. The first is solved by the fact that the Third Amended Complaint was filed on April 23, 2025, and therefore is no longer "to be filed." The

amended LWDA letter has been provided to the Court. (March 10, 2025 LWDA letter, attached to Moon Dec.) Second, counsel must establish that their investigation and pursuit of the as yet unfiled claims was as diligent and thorough as that of the initially noticed and pled claims.

Informal and formal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include “stacking” of violations, the law may only allow application of the “initial violation” penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where “based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.”])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees (\$160,000), relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, the Court deferred consideration of the fee award until final approval. Counsel have calculated a lodestar of \$177,955, based on 243.3 hours of attorney time at hourly rates ranging from \$550 to \$950, with the plurality of the work billed at \$750. The implied multiplier is 0.9. There is no need for an adjustment here. The fees are reasonable and are approved.

Litigation costs of up to \$35,000 are reasonable and are approved.

Settlement administration costs of \$6,990 are reasonable and are approved.

Similarly, litigation costs and the requested representative payment of \$7,500 for each plaintiff are now reviewed. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Mr. Keys attests that he spent about 25 hours working on the case and that being the class representative could affect his future employment prospects. Ms. Jordan attests that she spent about 20 hours working on the case and that being the class representative could affect her future employment prospects. All things considered, the request for \$7,500 each is approved.

D. Conclusion

In its tentative decision for the June 5, 2025, calendar, the Court found that, other than that issue of the recently-added claims, it would find that there is sufficient evidence that the settlement is fair, reasonable, and adequate to warrant preliminary approval. The Court, however, required that counsel submit a declaration establishing that those claims were investigated and pursued as thoroughly as the other claims. Counsel provided a declaration in conjunction with the motion for preliminary approval that provides sufficient discussion of the issue.

The Court finds that the settlement is fair, reasonable, and adequate, and grants the motion.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

2. 9:00 AM CASE NUMBER: C23-00841
CASE NAME: ANGELITO ALVIZ VS. VIRGILIO LEGARTE
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL AS TO JAYJAY ALFONSO**
FILED BY: ALFONSO, JAY JAY
TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

3. 9:00 AM CASE NUMBER: C23-03009
CASE NAME: RONALD ABBS, JR. VS. DAVID BOLES
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: S&J PROPERTIES, CONSTRUCTION, INC.
TENTATIVE RULING:

Withdrawn by moving party December 4, 2025.

4. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
***HEARING ON MOTION IN RE: CONFIRM REFEREE REPORT AND TO ALLOCATE SALE PROCEEDS**
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Attorney Endy Ukoha-Ajike's motion to impose a lien on this instant partition action on the Paulding Defendants portion of the subject property.

For the following reasons, **Attorney Endy Ukoha-Ajike's motion is granted.**

Factual and Procedural Background

Clients came to an attorney requesting assistance in a title dispute and associated unlawful detainer matter. They signed an agreement granting the attorney a lien on the subject property in exchange for legal services. At the time this legal agreement was signed, John Paulding and Timothy Paulding were residing in real property located at 5648 Burlingame Ave., Richmond, California. This property had belonged to their mother, Shirley Hart and her sister, Thelma Jackson, in joint tenancy.

Shirley Hart had formed a revocable trust and recorded a deed from herself to the Trust. After, she died on August 8, 2021, Thelma Jackson filed an Affidavit of Death of Joint Tenant claiming that the property belonged to her in its entirety. She then sent a letter demanding that John Paulding and Timothy Paulding vacate and hand over possession of the property to her. Subsequently she filed an unlawful detainer action to evict them from the property based on her claim that the property belonged to her.

Attorney Endy Ukoha-Ajike on behalf of John and Timothy Paulding then filed a petition under Probate Code §850 to establish that at least 50% of the property belonged to the Shirley Hart Trust whose Trustee and equal beneficiaries were John and Timothy Paulding. Attorney Endy Ukoha-Ajike on their behalf also mounted a defense to the unlawful detainer action filed by Ms. Jackson. Following a trial on November 3, 2023, Department 15 of this court ruled in their favor on the §850 petition and movant successfully obtained a 50% interest in the Burlingame Avenue property for the Pauldings. Attorney Endy Ukoha-Ajike defeated the unlawful detainer action subsequently. The representation

then ended per the legal services agreement.

On February 23, 2024, Ms. Jackson filed a partition action. On March 4, 2024, the Pauldings sent the attorney notice that they had no further need for his services. The Pauldings opposed the partition action in propria persona. This Court ordered partition of the real property and appointed David W. Martin as Receiver. This property has now sold, and the receiver has filed a declaration and other documents with this Court, seeking to distribute the proceeds of sale. No provision has been made for the fees earned by Attorney Endy Ukoha-Ajike.

Legal Standard for Imposing Liens During a Partition Action

To the extent necessary to grant the relief sought or other appropriate relief, the court shall determine the status and priority of all liens upon the property. (CCP § 872.630(a).) Any party, upon notice to the other parties who have appeared, may move the court to confirm, modify, or set aside the report. (CCP § 873.290(a).) At the hearing, the court may either confirm the report as filed or as the court may modify and enter judgment of partition accordingly or set aside the report and order preparation of a new report and, if necessary, appoint a new referee for this purpose. (CCP § 873.290(a).)

Analysis

The Lien for Attorney's Fees is Valid

A charging lien is an equitable corollary to, and thus inherent in, a contingency fee contract. (*Plummer v. Day/Eisenberg, LLP* (2010) 184 Cal.App.4th 38, 49.) "Unlike a judgment creditor's lien . . . an attorney's lien is a 'secret lien; it is created and the attorney's security interest is protected even without a notice of lien.'" (*Carroll v. Interstate Brands Corp.* (2002) 99 Cal.App.4th 1168, 1172.)

Defendant John Paulding does not argue that he did not sign or understand the subject fee agreement. Thus, it is uncontroverted that Plaintiffs freely assented to the subject fee agreement.

The Fee Agreement is Compliant with the Business and Professions Code § 6147

Defendant John Paulding argues that Attorney Endy Ukoha-Ajike's fee agreement is voidable because of being non-compliant with Business and Professions Code § 6147 under *Arnall*. (Oppo at p. 6: 15-22.) Plaintiff specifically contends that Attorney Endy Ukoha-Ajike's fee agreement was devoid of (1) the contingency fee rate, (2) statement of how the contingency fee will affect costs and client's recovery, (3) representation of what client would be required to pay for services outside the agreement, and (4) statement that the fee is negotiable.

In his Reply, Attorney Endy Ukoha-Ajike points out where in his fee agreement the contingency fee is stated (Page 2, Paragraph 4), where the payment of costs and charges are explained (Page 3, Paragraph 7), where charges not covered by the contingency agreement are explained (Page 2, Paragraph 4 and Paragraph 6), and where it states that the fees are negotiable (Page 2, Paragraph 6). Attorney Endy Ukoha-Ajike in his reply successfully defended Defendant John Pauldings's contentions

Attempted Arbitration

The Court does acknowledge that the subject fee agreement does contain an arbitration provision and Defendant John Paulding's demand for arbitration. (Ukoha-Ajike Decl., Ex. A, section 13; Oppo at p. 6:

24-25.) Attorney Endy Ukoha-Ajike in his declaration states that he has attempted to arbitrate the matter but neither the Alameda nor the Contra Costa Bar Associations currently maintain a fee arbitration program, making the arbitration provision moot. (Ukoha-Ajike Decl. ¶ 6.)

Conclusion

John and Timothy Paulding retained Attorney Endy Ukoha-Ajike to stop Thelma Jackson's efforts to assert a 100% interest in real property and to evict them from the property. The attorney succeeded in establishing a 50% interest in the Trust of which the Pauldings were beneficiaries and ended eviction efforts. Later, Thelma Jackson filed the instant partition action, whereupon the Pauldings dismissed Attorney Endy Ukoha-Ajike and represented themselves. The property in dispute has now been partitioned by sale.

The 50% interest of the Pauldings that was awarded to them in the present action only exists due to the efforts of Attorney Endy Ukoha-Ajike. It would be inequitable not to enforce the signed lien agreement.

Based on the explanation provided above, **Attorney Endy Ukoha-Ajike's motion is granted. The Court orders David Martin appointed Receiver in this matter, to pay the sum of \$110,836.45 to Endy Ukoha-Ajike from the shares of the proceeds of sale of 5648 Burlingame Avenue, Richmond, CA 94804 due to John and Timothy Paulding.**

5. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
*HEARING ON MOTION IN RE: CONFIRM AND/OR IMPOSE LIEN ON SHARE OF JOHN AND TIMOTHY PAULDING IN PROCEEDS OF SALE
FILED BY: UKOHA-AJIKE, ENDY
TENTATIVE RULING:
See line 4.

6. 9:00 AM CASE NUMBER: C24-00664
CASE NAME: COUNG CHAU VS. RONALD FONG
*HEARING ON MOTION IN RE: LEAVE TO FILED 2ND AMENDED COMPLAINT
FILED BY: CHAU, COUNG VI
TENTATIVE RULING:

Granted, without opposition. Plaintiff is to separately file the proposed Second Amended Complaint attached as exhibit A to the Declaration of Mario A. Moya within ten days after notice of this ruling.

7. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Defendant John Muir Health's demurrer to the first amended complaint is **sustained with leave to amend**. Plaintiff has twenty days from notice of entry of the order to file a second amended

complaint and an amended declaration under Code of Civil Procedure section 377.32.

Plaintiff Deja Jones is bringing this case individually and as successor-in-interest to Melody Jones. Plaintiff is Melody's granddaughter. (FAC ¶23.) Plaintiff alleges that Melody went to John Muir for surgery on November 19, 2023. (FAC ¶22.) Plaintiff alleges that John Muir's treatment of Melody resulted in bed sores and caused a decline in Melody's health, including a period of unconsciousness. Plaintiff alleges that Melody was a resident of John Muir's facility in Concord from November 19, 2023, to December 25, 2023. (FAC ¶53.) Melody transferred to a Sutter Health facility on December 25, 2023, and passed away on January 17, 2024, from septic shock and a necrotic leg. (FAC ¶32.)

Plaintiff is suing for (1) negligence, (2) elder abuse, (3) wrongful death and (4) unfair business competition. John Muir demurs to all claims based upon a defect or misjoinder of parties and the failure to allege sufficient facts to state a cause of action. (Code of Civil Procedure §430.10(d), (e).) John Muir also demurs to the unfair business competition claim on uncertainty. (Code of Civil Procedure §430.10(f).)

As an initial matter, the Court notes that Defendant sent one letter and one email to Plaintiff about the FAC, but Plaintiff failed to respond. (French dec.) In order to fully comply with Code of Civil Procedure section 430.41, the parties are required to meet and confer in person, by telephone or by video conference. Defendant initiated the process, but plaintiff made it impossible to fully comply by failing to respond. Defendant should not be able to preclude the filing of a demurrer by failing to respond. Accordingly, the Court exercises its discretion to decide the demurrer and motion to strike now without requiring a compliant meet and confer. The parties are reminded, however, to do a statutorily compliant meet and confer if there is another demurrer.

Defendant argues that causes of action one, two and three are survival actions and as such, Plaintiff needs some basis for bringing claims on behalf of Melody. Defendant's moving papers argued that Plaintiff has not alleged that she was appointed as Melody's executor, administrator, or personal representative and she did not file a Code of Civil Procedure §377.32 declaration. A declaration under section 377.32 must state that the declarant is decedent's successor in interest or is authorized to act on behalf of the successor in interest and include facts supporting that statement. (Code of Civil Procedure §377.32(5).)

As to cause of action three for wrongful death, section 377.60 states who may bring a wrongful death action, including "decedent's surviving spouse, domestic partner, children, and issue of deceased children, or, if there is no surviving issue of the decedent, the persons, including the surviving spouse or domestic partner, who would be entitled to the property of the decedent by intestate succession." (Code of Civil Procedure § 377.60(a).) Defendant argues that Plaintiff has not alleged that she meets the requirements under section 377.60.

Further, Defendant argues that while all heirs designated in section 377.60 have their own claim, "the actions are deemed joint, single and indivisible and must be joined together in one suit." (*Corder v. Corder* (2007) 41 Cal.4th 644, 652.) While Plaintiff has sued DOES 51-60 as Melody's unknown heirs, Defendant argues that Plaintiff must know some of Melody's heirs, including the

name of her mother or father.

After this demurrer was filed, Plaintiff filed a 377.32 declaration. In this declaration, Plaintiff declares that she is Melody's granddaughter. She states that there is no pending proceeding for administration of decedent's estate. Plaintiff also states that she is one of Melody's successors in interest (Code of Civil Procedure § 377.11) and that no other person has a superior right to commence this proceeding. (Jones dec. ¶¶2-5.) Plaintiff attaches a copy of Melody's death certificate, which lists Melody's son Joshua Jones as the informant. (Jones dec. ex. 1.)

In reply, Defendant argues that the 377.32 declaration is insufficient. The attached death certificate shows that Melody had a son. Defendant argues that the declaration does not address whether Melody's son would have rights here and does not state if there are any other living relatives.

As to the section 377.32 declaration, Plaintiff has not included sufficient facts in her declaration to show that she is the successor in interest to Melody's estate. Plaintiff states that she is Melody's granddaughter, but has not addressed if Melody has any other living heirs, such as children or grandchildren, or has otherwise shown how Plaintiff is the successor in interest.

As to the wrongful death claim, Plaintiff is Melody's granddaughter. Plaintiff has not alleged that her parent, Melody's child, is deceased. Nor has Plaintiff alleged facts showing that Plaintiff would be entitled to the property of the decedent by intestate succession. Further, Plaintiff should allege whether there are any known heirs who might have a wrongful death action under section 377.60, such as Joshua Jones.

As to the remaining claims, the Court finds that Plaintiff's section 377.32 declaration is insufficient and the FAC does not allege sufficient facts to show that Plaintiff has standing to bring any of the claims here. The demurrer is sustained with leave to amend for Plaintiff to file an amended complaint and an amended section 377.32 declaration that addresses the standing issue.

8. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT**
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Defendant John Muir Health's motion to strike portions of the amended complaint is **granted**. Plaintiff is given leave to amend as to the allegations in paragraph 46 and 47.

Defendant asks to strike (1) allegations that "Plaintiff is entitled to treble damages under Civil Code § 3345 as a result of Defendants' unfair business practices" in cause of action four (FAC ¶83) and (2) allegations related to 22 CCR section 72311 in paragraph 46 and 47.

As to the first issue, Defendant argues that Plaintiff cannot get damages under Civil Code section 3345 for an unfair competition claim under Business and Professions Code section 17200. Civil Code section 3345 allows for the trebling of a fine, or a civil penalty or other penalty in actions

brought to protect senior citizens. In *Clark v. Superior Court* (2010) 50 Cal.4th 605 the California Supreme Court held that trebling under Civil Code section 3345 is not permitted in a private action for unfair competition under section 17200 since restitution is the only monetary remedy available. (*Id.* at 608, 614.)

Plaintiff acknowledges the ruling in *Clark*, but argues that here she is seeking Civil Code section 3345 damages for the entire complaint. Yet, Defendant's motion addresses the allegation for treble damages included in the claim for unfair competition.

The Court finds that treble damages are not permitted in an unfair competition claim under *Clark*, and therefore the Court grants Defendant's request to strike them. Whether Plaintiff has some other avenue for obtaining treble damages is not before the Court at this time.

As to the second issue, Defendant argues that John Muir Center in Concord is an acute care general hospital and that the allegations regarding portions of the California Code of Regulations in paragraphs 46 and 47 relate to skilled nursing facilities, which are irrelevant here.

Defendant has included requests for judicial notice showing that John Muir Center in Concord is licensed by the State of California as a general acute care hospital. Defendant's requests for judicial notice are granted.

Plaintiff admits in her opposition that Defendant is an acute care hospital and states she can amend to state the applicable regulations against hospitals like Defendant. Plaintiff also argues that the California Code of Regulations provisions for skilled nursing facilities are necessary to the evidence against Defendant, but has not explain why those regulations are relevant here.

The Court finds that regulations regarding skilled nursing facilities in paragraphs 46 and 47 are irrelevant here where the defendant is an acute care hospital. The Court grants the motion to strike with leave to amend.

**9. 9:00 AM CASE NUMBER: C24-03339
CASE NAME: STYLE HOUSE-HOME STAGING, DESIGN & CONSULTING LLC VS. DE LUNA DESIGN AND BUILD LLC**

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO WRITTEN DISCOVERY
FILED BY: STYLE HOUSE-HOME STAGING, DESIGN & CONSULTING LLC**

TENTATIVE RULING:

Plaintiff moves to compel further answers to Special Interrogatories, Form Interrogatories, and a Request for Production of Documents. It further seeks sanctions in the form of a \$1,400 attorney fee. The moving papers document that the requests were propounded, responses were served, and plaintiff attempted to meet and confer about the adequacy of the responses, unsuccessfully. As to the specific requests at issue: As to the special interrogatories, for each disputed response (16, 18, 19, 20, 21, 22, and 32), the response asserts that a list of information will be provided, but it has not been provided. As to Form Interrogatory 9.2, again documents are promised, but have not been provided.

As to the Request for Production of Documents 51 requests were made, and responses were promised to all but six requests, yet defendant produced no documents. Defendant is ordered to produce documents as promised in the initial responses, within 20 days after notice of entry of this order.

Defendant filed a late response indicating that “it owes document discovery to Plaintiff,” but that it is going out of business and hopes to settle the case with a two-week continuance. Plaintiff replies that, while the case may yet be settled, it opposes a continuance. In the absence of agreement by the parties, the Court will deny the continuance

As to the request for sanctions, Rule of Court 3.1348(a) specifically addresses this situation, providing: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Failure to oppose or filing of a supplemental response “shall not be deemed an admission that the motion was proper or that sanctions should be awarded.” (CRC 3.1348(b).)

Code of Civil Procedure sections 2031.300(c) (production of documents) and 2030.290(c) (interrogatories) require sanctions, under specified circumstances, against a party “who unsuccessfully makes or opposes a motion to compel[.]” Under Code of Civil Procedure section 2023.030(a), however, the court has separate authority to impose a monetary sanction against a party engaging “in the misuse of the discovery process,” which is defined to include “making, without substantial justification, an unmeritorious objection to discovery[.]” (CCP § 2023.010(e).) That section does not require opposition to a motion to compel.

The evident purpose of the provisions of the statute and Rules of Court is to assure that a party cannot unjustifiably refuse to respond to discovery, put the propounding party to the time and expense of filing a motion to compel, and then avoid any accountability by not opposing the motion or supplementing the discovery responses.

10. 9:00 AM CASE NUMBER: C25-01089
CASE NAME: CONSUELO CAMPOS VS. CONTRA COSTA COUMMUNITY COLLEGE DISTRICT
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CONTRA COSTA COUMMUNITY COLLEGE DISTRICT
TENTATIVE RULING:

The demurrer, filed by defendant Contra Costa Community College District, is **overruled**. District shall file and serve its answer on or before December 22, 2025.

I. Factual Background

The complaint here involves plaintiff’s attendance at graduation ceremonies at the Diablo Valley College campus on May 17, 2024. (Complaint, ¶8.) Plaintiff alleges that she was walking along the fence on way to find seating in the bleachers when she tripped over an exposed cable that lacked any cable cover, with no other warning or demarcation. (*Ibid.*) Plaintiff suffered injuries to her chin,

right arm, right elbow, chest, left side of her body, and broke her right wrist. (*Ibid.*)

Earlier that morning, defendant DPH Sound and Lighting Corporation arrived at the campus and a network cable was connected to “the FBO portable.” (Complaint, ¶18.) A DVC employee connected the cable and had advised DPH that they would need to place a cable cover. (*Id.* at ¶19.) DPH did place a cover on the cable, but on the opposite side of the subject fence, not where plaintiff and other attendees would be walking to reach their seats in the bleachers. (*Ibid.*) The college employee failed to check that the cable cover was properly placed for the purposes of protecting attendees like plaintiff. (*Ibid.*)

Plaintiff filed this complaint on April 17, 2025, alleging three causes of action with the following titles: (1) Public Entity Liability, (2) Public Employee Liability, (3) Negligence. Plaintiff seeks to recover damages for her injuries.

After making some effort to meet and confer with plaintiff, and receiving no substantive response, defendant filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), arguing the complaint fails to state a cause of action. Plaintiff opposes the demurrer.

II. Evidentiary Matters

Defendant’s request for judicial notice of the complaint is **granted**.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.) We give the complaint “a reasonable interpretation, reading it as a whole and its parts in their context. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) We are not limited to plaintiffs’ theory of recovery in testing the sufficiency of their complaint against a demurrer, but instead must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. (*Id.* at 38-39, citations omitted.)

IV. Discussion

District demurs because it contends the complaint fails to identify the statutory basis for liability and a public entity is not liable for an injury except as provided by statute. (Gov. Code, § 815, subd. (a); see also *Zelig v. County of Los Angeles* (2002) 27 Cal. 4th 1112, 1127.)

Plaintiff responds to this with citations to the aspects of her complaint that satisfy the requirements of Government Code section 835. Government Code section 835 sets out the exclusive conditions under which a public entity can be liable for a dangerous condition of public property. Section 835 states, “Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and either: [¶] (a) A negligent or wrongful act or omission of an employee of the

public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.”

The complaint alleges a dangerous condition. (Complaint, ¶12.) It alleges that the injury was proximately caused by the dangerous condition. (*Id.* at ¶15.) Plaintiff has also alleged that the dangerous condition created a reasonably foreseeable risk of the kind of injury suffered. (*Id.* at ¶¶12-13.) Plaintiff pleads that a negligent or wrongful act or omission of DVC’s employee, within the scope of his employment, created the dangerous condition, and that DVC had actual or constructive notice of the dangerous condition. (*Id.* at ¶¶14, 22.)

Under the standard described in *Quelimane Co., supra*, plaintiff’s title of a cause of action is not determinative of its nature. Accordingly, while the District’s contention on reply that “a public entity cannot be held liable for common law negligence” may be true, the facts alleged are sufficient to allege liability for a dangerous condition of public property pursuant to Government Code section 835.

Plaintiff’s opposition also points out that the statutes on which the complaint is based are included in the caption. The list is not specific as to which cause of action falls under which statute, but sustaining a demurrer based on these statutes not being copied into the body of the complaint would elevate form over substance. Both sides discuss Government Code section 835, which is among the statutes cited in the caption, and the facts included in the complaint satisfy the elements of the statute. The general rule is that “every *fact* material to the existence of its statutory liability must be pleaded with particularity.” (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795, emphasis added.) The Court is unaware of authority that also requires each cause of action to include a specific statutory citation. Any further clarification can be achieved through discovery requests.

While plaintiff does not respond to the demurrer’s arguments concerning the third cause of action, the cause of action is largely duplicative of the others. While the title may misidentify the nature of what is being pleaded, the styling of the complaint does not determine whether a cause of action has been stated. Both parties appear to understand that the cause of action stated is one for dangerous condition of public property.

The demurrer is overruled.

**11. 9:00 AM CASE NUMBER: C25-01475
CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY A PRELIMINARY INJUNCTION SHOULD NOT BE
ISSUED CONTAINING THE SAME TERMS AS TRO PENDING FINAL JUDGMENT
FILED BY:**

TENTATIVE RULING:

Plaintiff Audrey Welsch’s request for a preliminary injunction is denied.

I. Background

Plaintiff Audrey Welsch filed this action on May 28, 2025, asserting causes of action for Claim and Delivery (Replevin), Conversion, Trespass to Chattels, Intentional Infliction of Emotional Distress, Negligent Infliction of Emotional Distress, and Declaratory Relief against Defendant Hayden Florez.

Plaintiff alleges that she and Defendant were formerly romantic partners and that during the relationship she purchased a German Shepherd dog, Maverick, registered him solely in her name through the American Kennel Club, and obtained psychiatric service-dog documentation and training for him. After the parties separated and Plaintiff moved out of the shared residence on March 30, 2024, they allegedly continued an informal exchange arrangement allowing Defendant temporary custody of Maverick. Plaintiff contends that Defendant was required to return Maverick on March 10, 2025, the end of an agreed-upon custody period, but failed to do so and has since refused to relinquish possession.

Defendant disputes Plaintiff's ownership claim, asserting instead that Maverick was a gift to him from Plaintiff in June 2020, supported by witness declarations and purported video evidence. Defendant also challenges Plaintiff's assertion that Maverick is a trained psychiatric service animal and disputes the extent and legitimacy of Plaintiff's claimed emotional distress.

Plaintiff first sought preliminary injunctive relief in June 2025, but the request was denied on October 9, 2025, on procedural grounds because service had not yet been effectuated at the time the motion was filed. Defendant was personally served on October 6, 2025. Plaintiff then renewed her request by filing an ex parte application for a temporary restraining order (TRO) and order to show cause re: preliminary injunction (OSC) on November 7, 2025, seeking the immediate return of Maverick. On November 10, 2025, the Court issued the OSC but denied the TRO, resulting in no immediate turnover of the dog.

Separately, in August 2025, Defendant filed a request for a domestic violence restraining order (DVRO) in Case No. D25-03116. Judge Coats issued a temporary restraining order that did not designate Maverick as a protected animal or alter possession but allowed the parties brief and peaceful contact to facilitate exchanges of the dog. The DVRO was set for hearing on October 3, 2025, but the petition was dismissed without prejudice when Defendant and his counsel failed to appear after inadvertently logging into the wrong Zoom department, a mistake they attribute to receiving no notice of reassignment.

Defendant later renewed his request, and on November 12, 2025, Judge Lee issued a temporary restraining order granting Defendant exclusive possession of Maverick, based in part on allegations that Plaintiff had neglected the dog. On December 3, 2025, Judge Lee continued the DVRO hearing to April 13, 2026, and ordered the November 12 restraining order to remain in full force and effect until that date.

On November 26, 2025, Defendant also filed a cross-complaint alleging stalking, trespass, and nuisance, asserting that Plaintiff gifted Maverick to him and later engaged in conduct intended to harass or interfere with him. Defendant filed his opposition to the preliminary-injunction request, evidentiary objections, and supporting witness declarations on November 26, 2025, and a request for judicial notice on December 5, 2025. A reply was due December 4, 2025; none was filed.

II. Legal Standards

“The general purpose of such an injunction is the preservation of the status quo until a final determination of the merits of the action.” (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.) In deciding whether to issue a preliminary injunction, a court must weigh two “interrelated” factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or non-issuance of the injunction. (*Butt v. State of California* (1992) 4 Cal.4th 668, 677–678.)

California recognizes two types of preliminary injunctions: prohibitory and mandatory. A prohibitory injunction restrains a party from taking action and therefore preserves the status quo. A mandatory injunction, by contrast, requires a party to take affirmative action and thus alters the status quo. Because mandatory injunctions compel change rather than prevent it, they are disfavored and are granted only in extraordinary circumstances. The moving party must make a showing far stronger than in the ordinary case. (See *Board of Supervisors v. McMahon* (1990) 219 Cal.App.3d 286, 295 [a preliminary mandatory injunction “is not permitted except in extreme cases where the right thereto is clearly established and it appears that irreparable injury will flow from its refusal”].)

The decision whether to grant a preliminary injunction lies within the sound discretion of the trial court and will not be disturbed on appeal absent an abuse of discretion. (*Thornton v. Carlson* (1992) 4 Cal.App.4th 1249, 1255.)

III. Analysis

A. Relief Requested

Plaintiff seeks a preliminary injunction compelling Defendant to immediately relinquish possession of Maverick and deliver the dog to her pending final judgment.

B. Evidentiary Matters

Defendant’s Objection to the Declaration of Sebastian Bendeck

Defendant submits evidentiary objections to various statements in the declaration of Plaintiff’s counsel, Sebastian Bendeck. Although the objections identify specific statements and grounds, they do not comply with CRC, rule 3.1354, because they are not sequentially numbered and they lack the required proposed order. For that reason, the Court declines to rule on them.

The Court notes, however, that much of the Bendeck declaration consists of hearsay and assertions not based on personal knowledge. To the extent the declaration reflects attorney argument rather than competent evidence, it carries little weight in evaluating Plaintiff’s likelihood of success or irreparable harm.

Defendant’s Request for Judicial Notice

Defendant’s request for judicial notice of the November 12, 2025 Domestic Violence Temporary Restraining Order and the December 3, 2025 Order on Request to Continue Court Hearing in Case No. D25-03116 is granted. (Evid. Code, § 452, subd. (d).)

C. Plaintiff's Likelihood of Success on the Merits

1. Effect of Judge Lee's Domestic Violence Restraining Order on the Requested Relief

By seeking a preliminary injunction compelling Defendant to relinquish possession of Maverick, Plaintiff is effectively attempting to avoid the effect of the November 12 Domestic Violence Temporary Restraining Order issued in Case No. D25-03116, which grants Defendant exclusive possession of the dog through the continued hearing set for April 13, 2026. Although the DVTRO was issued in a separate action, it remains an order of this Court. One superior court judge has already determined that Defendant should retain exclusive possession of Maverick during the pendency of the DVRO proceeding, and California law does not permit another department of the same superior court to issue an order that would conflict with or undermine that determination. "The ruling of one superior court judge in a case may not be overruled, overlooked, or ignored by another superior court judge." (*In re Alberto* (2002) 102 Cal.App.4th 421, 427–428; see also *Greene v. State Farm Fire & Casualty Co.* (1990) 224 Cal.App.3d 1583, 1588.)

Issuing the requested injunction would place this Court in direct conflict with the existing DVTRO. Nothing in this ruling prevents Plaintiff from seeking modification of that order in the family court, should she believe such relief is warranted. But this Court declines to enter relief that is incompatible with the DVTRO currently in effect.

2. The Mandatory Nature of the Requested Relief

Another issue presented by the motion, though not addressed by Plaintiff, is that she seeks relief in the nature of a mandatory injunction because it would alter, rather than preserve, the status quo. The status quo is the "last actual peaceable, uncontested status which preceded the pending controversy." (14859 Moorpark Homeowner's Ass'n v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1408.) The declarations indicate that, after the parties separated, they followed an informal arrangement under which Defendant had temporary custody of Maverick and returned him to Plaintiff at agreed-upon times. This shared-possession arrangement constitutes the last peaceable and uncontested status. The controversy arose only when Defendant did not return Maverick on March 10, 2025. Plaintiff does not seek to reinstate the prior shared-possession arrangement; rather, she seeks an order requiring Defendant to relinquish exclusive possession of the dog to her pending trial. Because such relief would change the status quo, it is mandatory in nature. Mandatory preliminary injunctions are disfavored and "are not permitted except in extreme cases where the right thereto is clearly established." (*Teachers Ins. & Annuity Assn. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493.) Given this heightened standard, the Court turns to the evidence submitted by both parties to determine whether Plaintiff has established a clearly defined right to immediate possession.

3. Plaintiff's Ownership Claim and Conflicting Evidence in the Record

The parties submit sharply conflicting evidence regarding ownership of Maverick. In her November 7, 2025 declaration, Plaintiff asserts that she purchased Maverick outright in July 2020 using her own funds, that all AKC registration, microchip information, and pet insurance identify her as the sole

owner, and that she alone paid for training, veterinary care, and other major expenses. (11/7/25 Welsch Decl. ¶¶ 3-6, 31.) She denies ever giving Maverick to Defendant as a birthday gift. (*Id.* ¶ 15.) Plaintiff further states that after she moved out in April 2024, she took Maverick with her but allowed Defendant periodic time with Maverick “out of goodwill” (*id.* 12), and that Defendant always returned the dog until he refused to relinquish him until March 10, 2025. (*Id.* ¶ 14.) Plaintiff also asserts that Maverick is her psychiatric service animal and that she undertook the process of obtaining documentation and training for that purpose. (*Id.* ¶¶ 7–10, 29.)

Defendant’s November 26, 2025 declaration offers a competing account. Defendant says that Plaintiff gave Maverick to him as a surprise birthday gift in June 2020 (11/26/25 Florez Decl. ¶ 6), that he only agreed to allow Plaintiff visitation after the parties broke up to “keep the peace” (*id.* ¶¶ 12-14), and that Defendant decided that the visitation arrangement should end after Plaintiff returned Maverick with a bloody ear infection. (*Id.* ¶¶ 18-20.) Defendant disputes Plaintiff’s assertion that Maverick is her psychiatric service dog, claiming instead that Plaintiff obtained the designation from a doctor she knew through work in order to fly with Maverick to a motocross event, and thereafter to keep him in her apartment without paying pet-related fees. (*Id.* ¶ 28.) Defendant also submits *numerous* third-party declarations stating that, based on the declarants’ observations of Defendant’s interactions with Maverick, as well as Plaintiff’s statements and conduct, they understood that Maverick belonged to Defendant. (See Plf.’s 11/26/25 Amended Compendium of Evidence, Exs. 1-25.)

The evidentiary record leaves Plaintiff’s likelihood of prevailing on her ownership claim, at best, evenly balanced. Accordingly, even apart from Judge Lee’s order, Plaintiff has not shown the kind of clearly established right to immediate possession required to justify mandatory preliminary relief.

Because Judge Lee’s order remains in effect, this Court cannot issue relief that would conflict with it. And even if the DVTRO were disregarded, the evidence submitted by both sides remains sharply disputed, such that Plaintiff cannot satisfy the heightened showing required for mandatory injunctive relief. The Court further finds that, under the ordinary standard governing prohibitory relief, the competing declarations leave the evidence evenly balanced, which is insufficient to demonstrate a likelihood of success on the merits. Each of these considerations independently requires denial of the motion.

D. The Balance of Harms

As for the balance of harms, Plaintiff states that her separation from Maverick has caused severe physical and psychological difficulties, including daily panic attacks, loss of consciousness, falls resulting in injuries, sleep deprivation, and deteriorating mental health. (11/7/25 Welsch Decl. ¶¶ 19–21, 24–27.) She also claims lost wages and depletion of paid leave due to these symptoms. (*Id.* ¶¶ 22–23.) The Court has considered these statements. However, the evidentiary record does not clearly establish that Plaintiff’s well-being depends on uninterrupted, exclusive possession of Maverick pending trial. Plaintiff acknowledges that, before the parties’ dispute, the parties shared possession of the dog for approximately a year after their separation, during which she allowed Defendant to keep Maverick for extended periods. (*Id.* ¶¶ 12–14; see also 6/13/25 Welsch Decl. ISO Mot. for Prelim. Inj. ¶ 8 [noting that Plaintiff previously tolerated separations of up to three weeks during the shared-

custody arrangement].) These voluntary separations tend to weaken Plaintiff's claim that she now faces immediate and irreparable harm.

In addition, the Declaration of Hunter Capilla attaches and describes a series of Instagram posts made by Plaintiff during the months following Defendant's refusal to return the dog. These posts depict Plaintiff traveling, socializing, and participating in recreational activities without obvious limitation. (See 11/26/25 Capilla Decl. ¶¶ 1–5 and Exs. 1–8.) With no reply filed, this evidence remains unrefuted in the present record. The contrast between Plaintiff's assertions of daily debilitating symptoms and her documented activities on social media further undermines the claim that she faces immediate and irreparable harm absent exclusive interim possession of the dog.

Although Plaintiff submits evidence that separation from Maverick has had significant emotional and physical consequences for her, including symptoms she attributes to the loss of the dog's psychiatric-support functions, the evidentiary record remains mixed. Defendant has been Maverick's primary caretaker since this dispute arose, and he asserts his own emotional bond with the dog. On this record, the Court cannot conclude that the interim hardship to Plaintiff outweighs the hardship to Defendant in a manner sufficient to justify a change in possession before trial. In any event, without a showing of likely success on the merits, Plaintiff's motion must be denied regardless of how the harms balance.

IV. Conclusion

Based on the foregoing, the **Court denies the request for a preliminary injunction.**

12. 9:00 AM CASE NUMBER: C25-02371

CASE NAME: BETTY KARRIS VS. JILL CHERNE

***HEARING ON MOTION IN RE: ORDER GRANTING LEAVE TO CONDUCT INDEPENDENT MENTAL EXAM OF BETTY JEAN KARRIS**

FILED BY: KARRIS, BETTY JEAN

TENTATIVE RULING:

Two motions are before the court: (1) Plaintiff Betty Jean Karris (Betty Jean), through her Guardian ad Litem Harry Karris (Harry), moves for leave to conduct an Independent Mental Examination of Betty Jean; and (2) Plaintiff Betty Jean (represented by a different attorney and appearing without a guardian ad litem) moves to vacate the order appointing Harry Karris as guardian ad litem. Based on applications for orders shortening time, both matters were set before the Court on this date.

Betty Jean Karris, 91 years old, is the trustee of the Adrian and Betty J. Karris Trust. Defendant Jill Cherne (Jill) is her daughter. Harry Karris is her son. Betty Jean Karris transferred certain real property out of her trust to defendant Jill Cherne. Harry Karris contends that this transfer was without consideration and filed an action to recover the real property, as well as asserting other claims against Jill associated with other property. The action was filed on August 19, 2025, and Harry Karris was appointed as Betty Jean Karris' guardian ad litem on August 29, 2025.

On October 16, 2025, Betty Jean Karris appeared, through a different attorney, by way of a motion to

vacate the appointment of Harry Karris as guardian ad litem. In this pleading, she states that she does not need a guardian ad litem, that she had no knowledge of the suit or the application for appointment of Harry as guardian ad litem, and that once the appointment of a guardian ad litem is vacated, she will dismiss the case. In this pleading, she contends that the transfer in question is part of a set of transfers of eleven pieces of real property to Harry (4) and Jill (7) (one of which was sold to a third party), which actually gave more value to Harry. Harry opposes the motion and moves for leave to conduct an Independent Mental Examination of Betty Jean Karris.

Harry contends that Betty Jean's lack of capacity is apparent, and has been acknowledged by Jill. He also submits declarations of a nephew, two grandchildren, and an employee attesting to Betty Jean's memory issues. Counsel for Harry contacted counsel for Betty Jean and requested that she agree to attend a mental health examination at a specific date, time, and place, but received no response.

Under Code of Civil Procedure section 372, a court may appoint a guardian ad litem. "[T]he appointment of a guardian ad litem is subject to ongoing court supervision and the removal of a guardian ad litem, who functions partly as an officer of the court, is a matter within the court's control to be exercised as part of its inherent powers." (*Golin v. Allenby* (2020) 190 Cal.App.4th 616, 644.) The guardian ad litem must disclose any conflicts of interest and familial relationships with parties to the action. (§ 372(e).)

The application identified the proposed guardian ad litem as the son of Betty Jean Karris, and described her alleged cognitive decline. It did not identify any conflict of interest.

Under Code of Civil Procedure section 2032.310, a party seeking discovery by a mental examination shall obtain leave of court. The request for leave may be granted "only for good cause shown." (§ 2032.320(a).) Good cause exists where a party's mental state is in controversy. (*Vinson v. Superior Ct.* (1987) 43 Cal.3d 833, 839.)

As to the motion for leave to conduct a mental examination, substantial question has been raised about whether Betty Jean needs a guardian ad litem. Submission to a mental examination by a qualified expert is the best way to address the issue. The motion to compel a mental examination is granted, in part. Counsel for the parties are directed to meet and confer in order to agree on a time, date, place, and examining expert to conduct an examination pursuant pursuant to Code of Civil Procedure section 2032.020 and 2032.310. If they are not able to agree by January 5th, 2026, they shall each submit the issues on which they disagree for determination by the Court, through declarations of no longer than 3 pages filed with the Court. The objective of the mental health examination is to determine whether Betty Jean is a "person who lacks the capacity to make decisions" as defined Code of Civil Procedure section 372(a)(4)(A), (B). The cost of the examination shall be borne (at least initially) by Harry.

As to the motion to vacate the appointment of Harry as guardian ad litem, it remains to be seen whether a guardian ad litem is necessary, but it seems clear that Harry has a conflict of interest such that he should not serve in that capacity, due to his personal stake in the outcome of the litigation. Counsel are directed to submit to the Court either an agreed candidate for guardian ad litem, or their

own candidates (preferably two each) from which the Court will select. Either an agreement or a list of candidates shall be submitted to the Court no later than January 5th, 2026.

Because Harry is not a party to the case, he may consider whether to file a motion to intervene in this matter. In addition, the Court will consider whether to consolidate an apparently related matter, *Karris v. Cherne* (C25-01808), in which Harry has sued Jill for relief related to the same transactions and events, and Jill has cross-complained.

Pending the resolution of the issues identified above, Harry's authority as guardian ad litem shall continue only to carry out the acts necessary to comply with this order.

Betty Jean's counsel in the motion to vacate the appointment of the guardian ad litem requests \$4,800 in sanctions under Code of Civil Procedure section 128.7 for "bad faith or improper tactics[.]" Counsel have not, however, fulfilled the requirements of the "safe harbor" notice and separate filing requirement of section 128.7(c)(1). **Sanctions are denied.**

The motion to vacate appointment of guardian ad litem shall be continued to a date an appropriate date based on the date of the mental examination. **The Parties shall appear to discuss scheduling the matter.**

13. 9:00 AM CASE NUMBER: C25-02371
CASE NAME: BETTY KARRIS VS. JILL CHERNE
***HEARING ON MOTION IN RE: SETTING ASIDE ORDER APPOINTING GAL HARRY ATHAN KARRIS**
FILED BY: KARRIS, BETTY JEAN
TENTATIVE RULING:
See line 12.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION PRO HAC VICE AS TO BELINDA GRUNFELD FOR DEF
FILED BY: SYNGENTA AG,
TENTATIVE RULING:
Granted.

15. 9:00 AM CASE NUMBER: MSC19-01155
CASE NAME: JOANN BRADFORD VS. CHEVRON U.S.A. INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS**
FILED BY: BRADFORD, JOANN
TENTATIVE RULING:

Plaintiffs move to compel further production of documents and for monetary sanctions. This is a wage & hour class action, in which Chevron earlier had produced certain information concerning the employees in the certified class. At one point, it became known that there were another 134 class members for whom time records and payroll information had not been produced. After informal

agreements did not result in the production of the documents, plaintiffs served formal requests. An objections-only response was made, raising numerous objections. Objections included that the requests violated the privacy of the employees, that the requests were vague and ambiguous, that the documents were not reasonably accessible, that the documents were not relevant or reasonably calculated to lead to the discovery of admissible evidence, and that the requested documents were confidential.

Meet and confer efforts were not successful. Plaintiffs filed this motion, making a reasonable prima facie argument as to why the documents should have been produced. Chevron has not filed an opposition. Plaintiffs seek an order compelling production in 7 days, and sanctions in the amount of \$28,969.

The motion initially was filed and served on October 24, 2025, and set for April 23, 2026, but was advanced by the Court pursuant to plaintiffs' ex parte application to December 11, 2025. The order was entered on November 13, 2025, but was served (electronically) on November 17, 2025, which is 16 court days before the hearing.

Plaintiffs' showing is sufficient, in the absence of opposition, to grant the motion. Defendant is ordered to produce the documents requested no later than 14 days from service of entry of this order.

As to the request for sanctions, the Court is mindful that Chevron filed no opposition. Rule of Court 3.1348(a) specifically addresses this situation, providing: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." Failure to oppose or filing of a supplemental response "shall not be deemed an admission that the motion was proper or that sanction should be awarded." (CRC 3.1348(b).)

Code of Civil Procedure sections 2025.450(g)(1) requires sanctions, under specified circumstances, against a party "who unsuccessfully makes or opposes a motion to compel[.]" Under Code of Civil Procedure section 2025.459(a), the Court also has *separate* authority to impose a monetary sanction against a party engaging "in the misuse of the discovery process," which is defined to include "making, without substantial justification, an unmeritorious objection to discovery[.]" (CCP § 2023.010(e).)

That section does not require opposition to a motion to compel.

The evident purpose of the provisions of the statute and Rules of Court is to assure that a party cannot unjustifiably refuse to respond to discovery, put the propounding party to the time and expense of filing a motion to compel, and then avoid any accountability by subsequently supplementing the discovery responses or simply not opposing the motion.

Monetary sanctions will be awarded as follows.

Plaintiffs' initial request for \$28,969 is based on \$18,969 expended in meeting and conferring and filing the motion, and an expected additional \$10,000 in filing a reply and appearing at the hearing. The hourly breakdown is reasonable, except that \$930 per hour for one attorney doing most of the

work (13.5 hours) is too much for a routine discovery motion (regardless of the qualifications of the attorney). Those hours are reduced to \$750 per hour, for a reduction of \$2,430. This reduces the \$18,969 figure to \$16,539. As to the anticipated hours, counsel's reply declaration attests to an additional \$11,232 in fees. Again, the \$930 figure is reduced to \$750 for the hours to which it applies (a \$504 reduction). This reduces the additional fees to \$10,728. The two figures add up to \$27,267.

Defendant is ordered to pay the monetary sanction of \$27,267 within 14 days of notice of entry of this order.

16. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: ORDER AUTHORIZING RECEIVER TO WIND UP BUSINESS**

FILED BY: DONELL, STEPHEN

TENTATIVE RULING:

Continued by stipulation and order to **December 18, 2025, 9:00 a.m.**

17. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: TO DIMISS**

FILED BY: AGL ENTERPRISES, LLC A CALIF LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Continued by stipulation and order to **December 18, 2025, 9:00 a.m.**

18. 9:00 AM CASE NUMBER: MSC19-02640

CASE NAME: ALAMMARI VS OCEAN CITIES PIZZA, INC.

***HEARING ON MOTION IN RE: COMPLIANCE HEARING**

FILED BY:

TENTATIVE RULING:

As of 10:10 a.m. December 10, 2025, no compliance statement has been filed. **The parties are ordered to appear.**

19. 9:00 AM CASE NUMBER: MSC20-01999

CASE NAME: SANCHEZ VS ATHERSTONE FOODS, INC.

***HEARING ON MOTION IN RE: COMPLIANCE HEARING**

FILED BY:

TENTATIVE RULING:

As of 10:15 a.m. December 10, 2025, no compliance statement has been filed. **The parties are ordered to appear.**

20. 9:00 AM CASE NUMBER: N25-1529

CASE NAME: CLAIM OF:LIAM SAENZ

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Granted. For good cause, the Court waives the appearance of counsel, the Guardian ad Litem, and the minor.

Law & Motion
Add On

21. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. DOES 1 THROUGH 10, INCLUSIVE
*HEARING ON MOTION IN RE: FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA
SETTLEMENT (CONTINUED FROM 10.30.2025 & 12.04.2025)
FILED BY:
TENTATIVE RULING:
Appearance required, pending submission of signed agreement.